

Delegating Data Subject Rights: Understanding Stakeholders' Perspectives

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Data subject rights are increasingly being used as a methodological tool for auditing digital systems, investigating organisational data practices, and supporting algorithmic accountability. However, research driven by these rights remains difficult to scale because participants must navigate complex legal and organisational processes. Delegation, whereby a trusted intermediary exercises data subject rights on behalf of participants, has been proposed as a promising solution, yet little is known about how it is perceived by the stakeholders responsible for exercising, supporting, and processing these rights. We address this gap through an exploratory stakeholder study involving data subjects, researchers, and Data Protection Officers (DPOs). Using a wireframe prototype as a research artefact, we conducted semi-structured interviews to investigate the opportunities and challenges of delegated data subject rights research. Our findings show that while delegation has considerable potential to broaden participation and enable more scalable rights-driven research, its successful adoption depends on addressing socio-technical challenges relating to trust, transparency, privacy-preserving identity verification, organisational capacity, and legal uncertainty. We also reveal important differences between researchers' and DPOs' perspectives on delegation, highlighting tensions that existing work has largely overlooked. Building on these findings, we derive a set of socio-technical design implications for delegation platforms that balance the needs of participants, researchers, and data controllers while supporting trustworthy, legally compliant, and scalable rights-based research. More broadly, we argue that delegation provides a promising foundation for transforming data subject rights from an individual legal mechanism into an infrastructure for participatory research and collective data governance.

CCS Concepts: • **Applied computing** → **Law**; • **Human-centered computing** → **Collaborative and social computing design and evaluation methods**; **Collaborative and social computing**; • **Security and privacy** → **Privacy protections**.

Additional Key Words and Phrases: Data protection, Data subject rights, Delegation, Research methodology

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1 INTRODUCTION

Data protection laws such as the European General Data Protection Regulation (GDPR) grant individuals a set of data subject rights intended to promote transparency, accountability, and individual control over personal data [43]. These rights include, among others, the right of access [43, Art. 15], the right to rectification [43, Art. 16], the right to erasure [43, Art. 17], and the right to data portability [43, Art. 20]. Comparable rights are also provided, albeit with jurisdictional differences, under privacy frameworks such as the California Consumer Privacy Act (CCPA) [40] and Canada's Personal Information Protection and Electronic Documents Act (PIPEDA) [17]. While originally conceived as legal safeguards, data subject rights have increasingly become a means of investigating contemporary digital systems. Researchers use them to audit organisational data practices, evaluate algorithmic accountability, and better understand how organisations collect, process, and share personal information [7, 34, 50]. Likewise, rights organisations have employed these rights to challenge opaque data processing practices and advocate for greater accountability [32, 41]. Collectively, these studies demonstrate that data subject rights can serve not only as legal protections, but also as a methodological tool for studying data governance. Throughout this paper, we refer to research studies that employ data subject rights as a methodology for data collection as "*data subject rights-driven studies*".

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For the CSCW and HCI communities, this emerging research paradigm presents an opportunity to investigate how people interact with data protection infrastructures and how legal rights shape participation in increasingly data-driven societies [7, 25]. However, despite their promise, data subject rights-driven studies remain difficult to conduct at scale. Exercising these rights requires participants to identify the appropriate data controller, navigate legal and organisational procedures, submit requests, and often engage in prolonged correspondence before requests are fulfilled [6]. Previous work has identified numerous barriers, including inconsistent organisational practices, legal uncertainty, limited public awareness, procedural complexity, and substantial administrative overhead for both participants and researchers [16, 21, 42, 48]. Consequently, most existing studies remain relatively small, expert-led, and focused primarily on the right of access [21].

Delegation has recently emerged as a promising approach to addressing these scalability challenges. Rather than requiring each participant to exercise their rights independently, delegation enables a knowledgeable intermediary—such as a researcher or digital rights organisation—to act on behalf of participants [5]. By reducing legal and procedural complexity, delegation has the potential to broaden participation, support citizen science, and enable large-scale rights-driven research [21, 22, 30]. At the same time, delegation raises important socio-technical questions concerning trust, privacy, and motivation [22]. Successfully supporting delegation therefore requires more than legal compliance or technical infrastructure; it requires understanding how the different stakeholders involved perceive and negotiate these issues.

Existing research has primarily examined data subject rights from the perspectives of data subjects or researchers, often evaluating organisational compliance through the outcomes of rights requests [21]. Comparatively little is known about how Data Protection Officers (DPOs), who are responsible for interpreting and implementing these requests, perceive delegated data subject rights in practice. As a result, we lack a holistic understanding of how delegation is negotiated across the multiple actors involved in rights-based research.

We argue that delegating data subject rights is fundamentally a socio-technical coordination problem involving participants, researchers, organisations, and legal infrastructures. Supporting delegation therefore requires understanding not only legal compliance or technical implementation, but also how these actors coordinate trust, accountability, identity verification, and organisational responsibilities in practice.

To address this gap, we conducted an exploratory stakeholder study involving nine participants representing the three key stakeholder groups in delegated data subject rights research (our focus was on understanding context rather than quantity): data subjects (members of the public), researchers experienced in data subject rights-driven studies, and DPOs. To facilitate discussion, we developed a low- to mid-fidelity wireframe prototype that illustrated how a delegation platform could support participation in a hypothetical research study. Following established HCI practice, the prototype served as a research artefact that enabled stakeholders to discuss potential workflows, identify challenges, and reflect on the broader implications of delegation before the development of a functional system [19, 23, 31, 47].

Through thematic analysis of semi-structured interviews, we make the following contributions:

- We conceptualise delegated data subject rights as a socio-technical coordination problem, showing how trust, organisational practices, legal uncertainty, identity verification, and privacy collectively shape the feasibility of delegated rights-driven research.
- We present, to our knowledge, the first qualitative multi-stakeholder study of delegated data subject rights, bringing together the perspectives of data subjects, researchers, and DPOs to reveal how these coordination challenges are experienced differently across stakeholder groups.

- We derive a set of socio-technical design implications for future delegation platforms that support trustworthy, scalable, and legally compliant data subject rights-driven participatory research.

The remainder of the paper is organised as follows. We first review related work on data subject rights-driven research, scalability, and delegation (Section 2). We then describe our methodology, including the prototype design, stakeholder interviews, and thematic analysis (Section 3). Next, we present our findings (Section 4) before discussing their implications for the design of future delegation platforms and the broader CSCW community (Section 5).

2 BACKGROUND

2.1 Data subject rights driven studies

Over 140 jurisdictions have enacted data protection and privacy laws. Several of these, such as the GDPR [43], the CCPA [40], and Canada's PIPEDA [17], enshrine rights for individual data subjects [38]. These rights are intended to empower individuals by giving them control over their personal data and by promoting key data protection principles such as fairness, transparency, and accountability. The GDPR provides eight such rights: the right to be informed, the right of access, the right to rectification, the right to erasure, the right to restriction, the right to data portability, the right to object, and the right not to be subject to automated decision-making [43].

While the framers of these laws aimed to empower data subjects, enhance privacy protection, and ensure transparency and accountability in digital environments [4, 42], others have approached these frameworks from different perspectives. For example, researchers have employed data subject rights as a methodological tool for data collection in empirical studies [7, 21], while activists have used these rights to advocate for workers' rights and fair data processing [32]. Because expectations differ regarding what these rights can achieve, asymmetries often arise between the law in theory and its implementation in practice [27].

Researchers play a pivotal role in assessing and improving the effectiveness of rights-based data protection frameworks by supporting their implementation, evaluation, and adaptation to user needs [25]. Numerous empirical studies have examined how data subject rights operate in practice, both within and outside Europe. The implementation of these rights depends on a variety of factors, including awareness, user perceptions, fear, perceived burden, data controllers' attitudes, usability challenges, and cost [16, 21, 26, 42]. For instance, regarding the right to be informed, only 0.96% of users ($n = 315$) read the full text of privacy policies when downloading an app or installing software [37]. In contrast, users demonstrate greater engagement when dealing with sensitive categories of data, such as genetic data, where they are more likely to read privacy policies and proactively exercise their right of access [18]. Researchers have also investigated how data controllers can design responsible technologies that facilitate the exercise of these rights by enabling direct user requests [36, 46]. Others have leveraged data subject rights as a means to enhance accountability, for example by using the right to data portability to externally audit data held by controllers of pervasive systems [50].

We categorise these emerging studies into three main types. First, studies that focus primarily on data access. For example, Zwiebelmann and Henderson [50] explore whether users can conduct external audits of pervasive systems by exercising their right to data portability. By comparing data collected from fitness trackers with the data provided by controllers, they identify discrepancies and highlight challenges arising from vague or incomplete explanations by organisations.

Second, studies that emphasise the procedural aspects of rights invocation. For instance, Ceresa and Alessia [15] examine how easy or difficult it is for data subjects in Italy to obtain access to their personal data. Their study reflects on

the differing practices between public and private sector organisations in responding to access requests and highlights the role of supervisory authorities in this process.

Third, studies that address both data access and procedural dimensions. Petelka et al. [33] examine the right of access as a socio-technical practice rather than solely a legal procedure. Through participants submitting 38 data subject access requests to 11 companies across three countries, they show that exercising data subject rights involves iterative interactions between policy, organisational practices, platform design, and users. Their findings reveal that participants frequently relied on workarounds to navigate inconsistent organisational processes, with these experiences ultimately shaping their perceptions of data protection law. The authors argue that supporting data subject rights requires flexible socio-technical infrastructures rather than simply standardising legal procedures.

2.2 Scaling data subject rights driven studies

Mahieu et al. [27] and Giannopoulou et al. [16] propose the collective exercise of data subject rights as a means of rebalancing power between citizens and data controllers. In practice, however, research employing these rights faces significant scalability challenges [21]. Existing studies typically rely on small-scale, expert-led efforts and focus predominantly on the right of access [21]. To support broader participation and enable research at scale, scholars have called for standardised frameworks that encompass the full range of data subject rights while enabling meaningful participation by non-experts [35, 36, 49].

One proposed approach is to leverage downloadable data packages made available by major data controllers such as Google and Meta. These packages can often be obtained more easily than submitting formal rights requests and may reduce barriers for participants contributing data to research [10]. However, this approach remains limited to studies involving the rights of access or data portability (or studies that focus primarily on data access). Furthermore, not all organisations provide downloadable data, and where they do, important categories of personal data—such as CCTV footage—are frequently excluded because of the technical and legal challenges associated with separating third-party information [39]. Consequently, downloadable archives cannot fully replace the exercise of data subject rights across diverse research contexts.

Scalability is also constrained by participants' ability to exercise their rights effectively. Many individuals lack the legal and technical knowledge required to navigate data protection procedures [21]. These challenges are often compounded by organisational practices that delay, restrict, or discourage requests, increasing the burden on participants and limiting the feasibility of conducting large-scale studies [21].

Beyond data subject rights, emerging regulatory frameworks such as the EU's Digital Services Act (DSA) introduce alternative mechanisms for data access [44]. Under Article 40, vetted researchers may obtain access to certain platform datasets through disclosure obligations imposed on very large online platforms and search engines [13, 44, Art. 40]. While these provisions offer new opportunities for platform research, they are limited to specific services and jurisdictions and do not provide a general mechanism for accessing personal data across different types of data controllers. Moreover, because researchers obtain data directly from providers, these mechanisms may reduce direct engagement with data subjects. In contrast, researching with data subject rights is inherently participant-centred, with individuals actively exercising their legal rights and explicitly consenting to the use of their data for research.

Addressing these challenges requires more than technical frameworks or legal mechanisms; it also requires understanding how data subject rights are implemented in practice. Existing research has primarily examined these rights from the perspectives of data subjects or researchers, often assessing organisational compliance through external observation. Consequently, the perspectives of data controllers—and particularly DPOs, who are responsible for

managing and interpreting these requests remain largely unexplored. This leaves an incomplete understanding of the organisational, legal, and operational factors that influence the implementation of data subject rights and ultimately affect their scalability as a research method. To address this gap, our work brings together the perspectives of data subjects, researchers, and DPOs to develop a more comprehensive understanding of how data subject rights can support scalable, participatory research.

2.3 Delegation

To overcome many of the practical barriers associated with exercising data subject rights, Asghari et al. [5] propose a delegation model in which a knowledgeable intermediary—such as a researcher, legal representative, or digital rights organisation—acts on behalf of individuals to exercise their rights. Rather than requiring each participant to interact directly with data controllers, delegation centralises the process through a trusted representative with the legal and technical expertise to manage requests effectively. This approach is particularly well suited to academic and participatory research, where participants may wish to contribute to rights-driven studies but lack the knowledge, confidence, or time to navigate often complex data protection procedures.

Building on this work, Habu and Henderson argue that delegation has the potential to fundamentally enhance data subject rights research [21, 22]. By lowering the barriers to participation, delegation enables larger and more diverse groups of individuals to exercise their rights, thereby improving the scalability of empirical studies. Beyond supporting research, they argue that delegation can increase transparency within data ecosystems, strengthen informed participation, and contribute to a more equitable balance of power between data subjects and data controllers [22].

The practical viability of delegation has also been demonstrated by the Austrian digital rights organisation *None of Your Business* (noyb). Acting on behalf of approximately 2,400 individuals, noyb coordinated access requests to investigate the algorithm used by the Austrian credit-scoring agency, CRIF, generating a dataset large enough to support statistically meaningful analysis of the system's behaviour [30]. This case illustrates that delegation can enable large-scale investigations that would be difficult for individuals to conduct independently.

Despite these promising developments, relatively little is known about how delegation operates in practice or how it is perceived by the key stakeholders involved. In particular, there remains limited understanding of the legal, organisational, and practical challenges that delegation introduces for data subjects, researchers, and data controllers. Addressing these questions is essential if delegation is to become a robust and scalable mechanism for exercising data subject rights.

3 METHODOLOGY

Because delegation is a novel concept for many stakeholders, we developed a UX-inspired wireframe prototype to communicate a hypothetical delegated data subject rights research process. The prototype was not intended to evaluate a software system, but rather to serve as a research artefact that provided participants with a common and concrete representation of the proposed delegation process. Early-stage prototypes are widely used within UX research to elicit stakeholder feedback on emerging concepts before substantial development effort is invested [19, 23, 47].

Participants were guided through a realistic research scenario using the wireframe prototype, enabling them to discuss how delegation might operate in practice, identify potential challenges, and reflect on issues. This walkthrough approach ensured that discussions were grounded in a shared understanding of the proposed process while generating qualitative insights to refine the delegation framework before evaluating it in a real-world setting.

3.1 Ethical considerations

For both the prototype development and stakeholder interviews, we identified two primary ethical considerations. First, non-expert interviewees (members of the public) might not fully understand the study. To address this, we obtained informed consent and provided opportunities for participants to ask questions and receive satisfactory explanations. Interviewees were informed that they could withdraw at any time without providing a reason. Second, some participants, particularly DPOs, might not wish to be identified. To protect anonymity, names and institutional affiliations were not attributed to responses. Participants who preferred not to appear on camera were encouraged to turn off their video and remove any identifiable information during the sessions. All responses were anonymised, transcribed, securely transferred, and stored in a controlled-access repository for analysis. Ethical approval for the study was obtained from our institutional ethics board.

3.2 The hypothetical research scenario

Our hypothetical research study involving a fictional researcher investigating price discrimination among online consumers based on demographic characteristics and financial capacity [1]. The study explores the hypothesis that online advertising platforms may tailor ads in a discriminatory manner according to users' demographics and financial status [1]. To address this research question, participants with online accounts at selected stores would be invited to exercise, or delegate the exercise of, their right of access or right to data portability and obtain the personal data held about them by data controllers. Participation is open to individuals from any country. The analysis would focus on behavioral information, personally identifiable information (PII), device identifiers, and web tracking data [2, 45].

3.3 Prototype creation

We created a wireframe prototype using the Balsamiq wireframing tool [8] to simulate an online participatory research project investigating price discrimination (Section 3.2). The design process was informed by UX principles [23]. Through contextual inquiry and a literature review, we identified key stakeholders—data subjects, researchers, and DPOs—while recognising that Data Protection Authorities (DPAs) play a passive oversight role. We mapped out their roles in a collaborative workflow (see appendix A). We also reviewed prior research, such as Asghari et al. [5], and conducted a 40-minute online semi-structured interview with a researcher experienced in data subject rights-driven studies. This researcher did not participate in the stakeholder interviews described in Section 3.6. The interview questions focused on identifying practical requirements for the prototype design. For example, we asked: “From your practical experience, could you walk us through the step-by-step process of using data subject rights in academic studies?” The insights gathered informed the design of workflows for delegation, data access, communication between participants and researchers, result reporting, and privacy-preserving data donation (see appendix B for the contextual inquiry interview questions). Using sketching and scenario-based design, we iteratively refined our ideas and produced a low- to mid-fidelity wireframe prototype in Balsamiq.

3.4 Wireframe Prototype

The wireframe prototype served as a research artefact to present key elements of our idea to stakeholders and facilitate communication during interviews. Low- to mid-fidelity prototypes such as this are commonly used in early development stages to explore design concepts before investing substantial resources [23]. The prototype was presented as a fictional

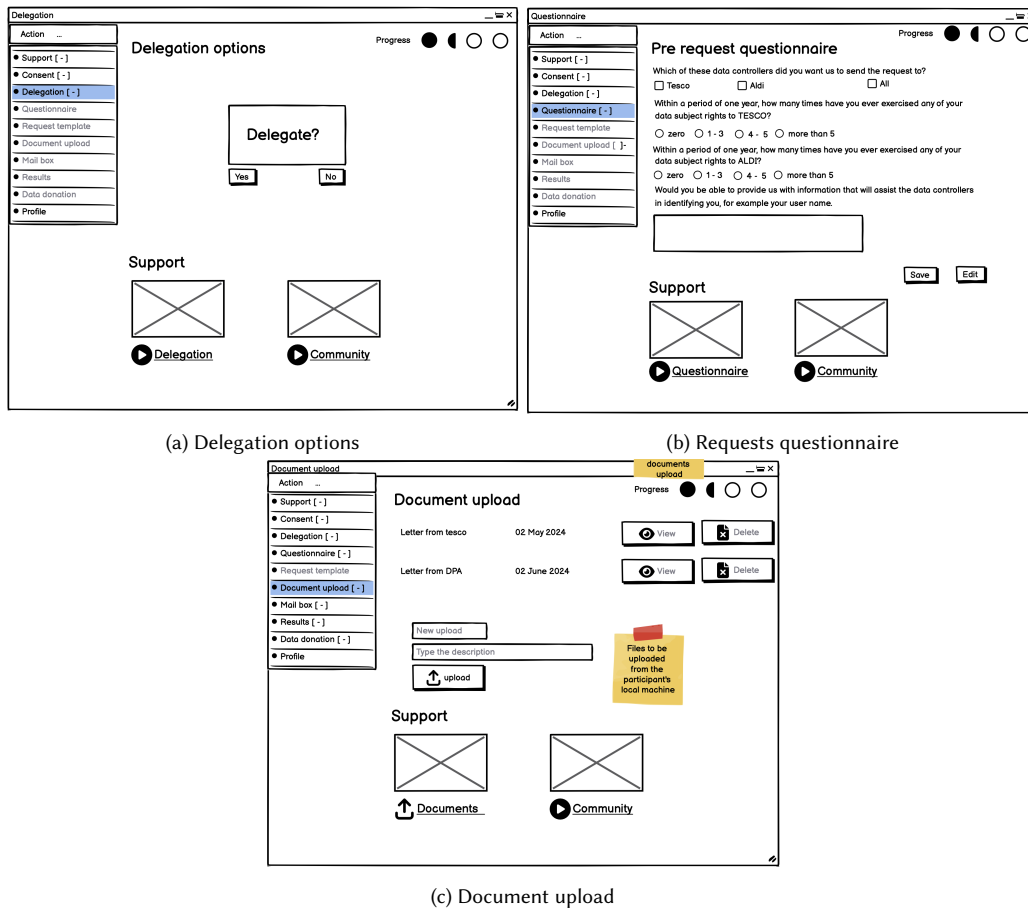


Fig. 1. Participants can delegate the exercise of their rights or do it themselves.

online interface in PDF format, containing mockup screens that guided participants through the experience of joining and participating in the hypothetical study.

Walkthrough of the prototype Interviewees viewed the prototype from the perspective of a data subject. Participants would first respond to an advertisement for the project and, if they chose to delegate, completed a questionnaire before requests were sent. Many of these steps—such as responding to recruitment materials or reporting results—mirror those found in traditional research projects. Below, we highlight prototype features most relevant to our research novelty.

Delegating the right of access: After signing up for the fictional research project, participants could choose to delegate their rights (Figure 1a). When selecting delegation options, participants could recommend trusted data controllers, which would later be evaluated based on ratings from other participants. Participants choosing delegation completed a short questionnaire (Figure 1b) to help the research team make well-founded and appropriate requests to data controllers. They could also upload consent forms or identification documents (Figure 1c) to verify the authenticity of delegation requests.

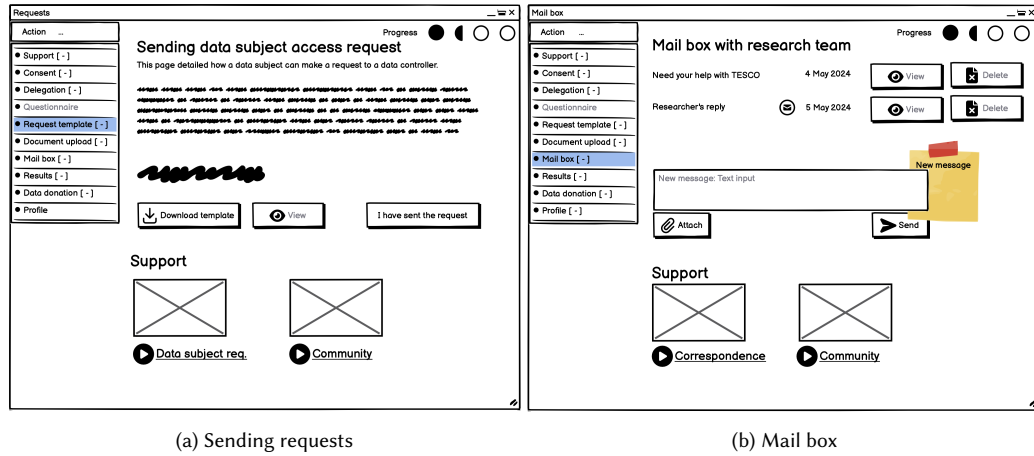


Fig. 2. Participants who opt to exercise their rights themselves are provided with a template and guidance. They can also communicate with the research team.

Communication with researchers: After joining the project, participants could use an integrated mailbox (Figure 2b) to contact the research team. For instance, if a data controller rejected a request based on a legal provision, participants could seek guidance from the researchers. Participants who initiated the process themselves could also request continued assistance via the mailbox.

Results: Regardless of delegation, once participants received data from data controllers, they analysed it and submitted their findings through the interface (Figure 3a). Participants were also asked to rate the data controller using a star rating system (Figures 3a and 3b). Example questions for the fictional study were displayed on the results page.

Data donation: One of the final tasks for participants is to decide to donate their data for research purposes (Figures 3b & 3c). It's important to note that data donation is optional and may not be required in certain studies, particularly those focused on evaluating a process, such as Ceresa and Alessia's study, which examined only the process of exercising data subject rights [15] (or those requiring participants to exercise their right to removal [43, Art 17] or their right to restrict processing [43, Art 18]). Data subjects can still take part in the study without donating their data. Such data needs to be sanitised to remove identifiable elements, to try and avoid the donation of irrelevant or personally identifiable data. Participants are guided through each stage of the donation process. Before uploading the data, adequate caution regarding the removing of personally identifiable data will be provided (Figure 3b), and there is an option to review the downloaded data and delete it if necessary (Figure 3b). Depending on the study, examples of donatable data in this scenario include behavioral information, PII, device identifiers, and web tracking data. Previous work has developed various data donation models that can be adapted for use in this context [3, 9].

3.5 Procedure and data collection

We conducted interviews with three stakeholder groups (see questions in appendix C) : DPOs, researchers, and data subjects (member of the public). Our sample size followed best practices in qualitative research, where smaller groups (typically 5–15 participants) allow for deep contextual understanding (see Designing Qualitative Research by Marshall and Rossman [28]). Our focus was not statistical generalisation but analytical depth, and the study deliberately sampled stakeholders with complementary roles to capture a diversity of organisational perspectives. All sessions were held

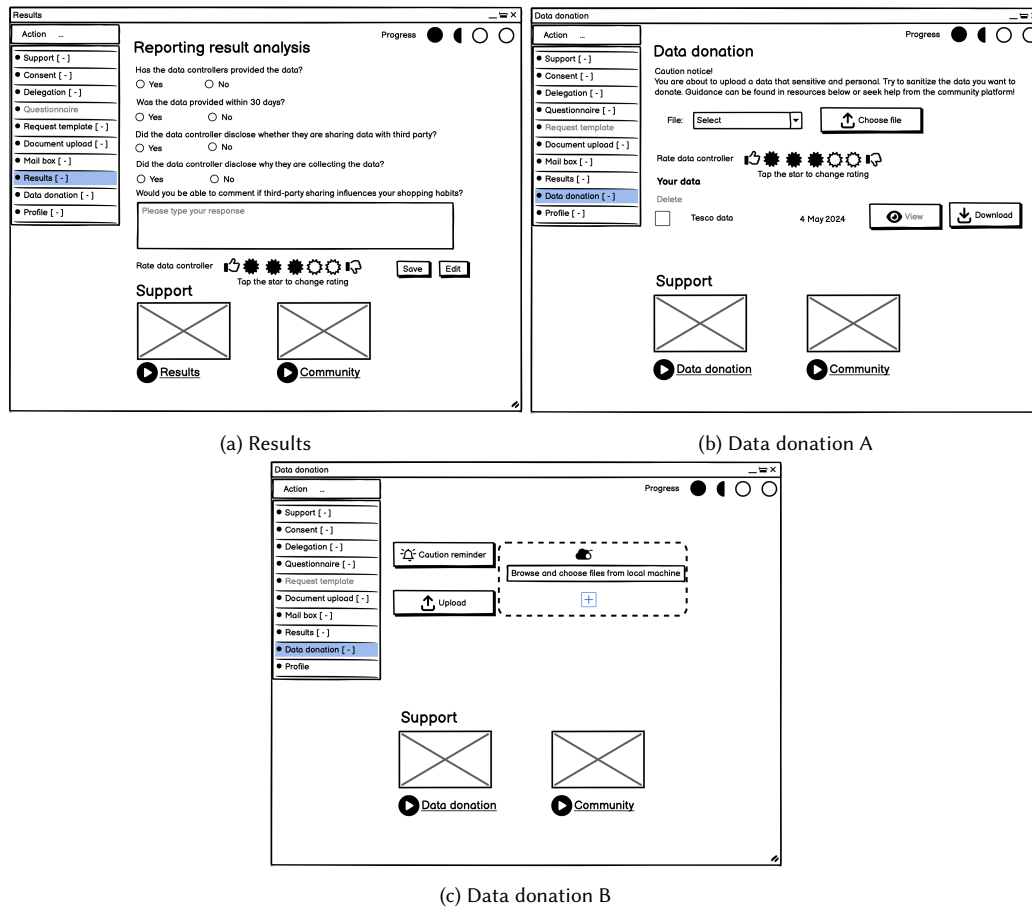


Fig. 3. Participants perform data analysis and submit the results, and can additionally choose to donate their data.

remotely via Microsoft Teams and recorded using Microsoft's built-in automatic transcription feature. Each interview lasted approximately one hour and consisted of three parts.

Before the study, we exercised our right of access and obtained shopping data from a UK-based data controller. The data were anonymised and shared with participants to provide a concrete example of how such data appear in practice, enabling them to make informed judgments during the discussion.

The first part introduced key concepts and allowed participants to familiarise themselves with relevant terms such as data donation. This step ensured that DPOs and data subjects, who might be less familiar with data subject rights research terminology, could engage meaningfully in the discussion. For researchers, this served as a refresher on key topics.

In the second part, we shared our screens and allowed interviewees to navigate the wireframe prototype. To support their understanding, we provided additional props, including the anonymised sample shopping dataset obtained earlier. The modified dataset was used to help participants explore and assess potential privacy risks. We also supplied a

template for submitting data subject requests, adapted from prior work [48], and a mock response letter from a data controller (see appendix C for the study materials- request/template and sample correspondence from data controllers).

The final part of the session consisted of a semi-structured interview focused on participants’ reflections about the prototype and the broader applicability in real-world research settings.

3.6 Interviewees & Recruitment

We used purposive sampling to recruit participants representing the three stakeholder groups directly involved in delegated data subject rights research: DPOs, researchers, and data subjects. Participants were recruited through the personal and professional networks of the research team. In total, nine participants took part in the study: three DPOs, three researchers, and three data subjects.

The three researchers had each conducted and published at least one peer-reviewed data subject rights driven study. None had participated in the contextual inquiry study described in Section 3.3, ensuring an independent exploration. The three DPOs were selected because of their professional responsibility for managing and responding to data subject rights requests, enabling us to explore organisational perspectives on delegated rights. The data subjects were randomly recruited as non-expert members of the public with no prior experience in data protection or data subject rights research. This reflected our objective of understanding how delegation might support participation among individuals who lack specialist legal or technical knowledge, consistent with the goal of making data subject rights research more accessible to a broader population.

Participants were geographically diverse: six were based in the United Kingdom, one in the United States, one in Germany, and one in Belgium.

3.7 Data analysis

A member of the research team conducted the interviews, and recordings were automatically transcribed using Microsoft Teams. We adopted an inductive thematic analysis approach following Braun and Clarke’s six-step framework [11]. All researchers independently familiarised themselves with the data and generated initial codes. One researcher then coded the data, considering the preliminary codes proposed by others. Several meetings were held to refine the coding scheme and share insights, after which themes were developed and iteratively refined.

For reporting interview excerpts, we use identifiers consisting of “I” (Interviewee), the participant group [D (DPO), R (Researcher), or M (Member of the public)], and a number representing the chronological order of the interview.

4 FINDINGS

In this section, we first provide interviewees’ general reactions to our work. Then, we will present the three themes that emerged from our thematic analysis. We will highlight trust and transparency as central topics interviewees discussed from multiple stakeholders’ perspectives. Next, we present interviewees’ views on the potential burden and workload this initiative may impose on various stakeholders. Lastly, we will discuss points related to data protection highlighted by our interviewees. This section will be divided into three parts: (1) Trust and transparency, (2) Burden and workload, and (3) Data Protection.

The majority of interviewees responded positively. Many appreciated the overall idea, particularly how incorporating delegation could simplify navigating the complexity related to citizens exercising their rights, distributed data processing, and their satisfaction with the idea of data donation. Some interviewees highlighted the importance of engaging individuals and encouraging their participation in data subject rights driven studies. They believe that while our idea

is good, involving more participation could uncover valuable insights and facilitate necessary improvements. IR02 expressed that *"The system that you're doing is a very good idea. That's like a really important to have, like, ... But apart from that, I think if we just more people start doing it, I think it could, that would help, like learn lessons and share lessons and kind of improve it"* (IR02). By actively engaging people, we can raise awareness and contribute to educational outreach efforts concerning data subject rights. We believe this empowerment would enable the public to make informed decisions about their personal data, ultimately supporting the objectives of data protection regulations.

4.1 Trust and transparency

Trust and transparency were central topics raised by interviewees. In this section, we will discuss some of the trust and transparency related perspectives explored during interviews.

Trust emerged as a significant topic, with seven of the nine interviewees identifying it as a crucial issue. IR01 said *"for this to work, we would need a trust anchor and which may be this platform that you suggest, that makes sure nothing can happen, and researchers can be relied on ... for me is one of the biggest issues that I see ..."* (IR01). What becomes apparent from this quotation is that trust appears to be foundational, as participants need to believe that researchers will act responsibly and in their best interest. Additionally, a lack of trust can affect the willingness of individuals to delegate their data subject rights or donate their data, particularly in situations where sensitive data are involved. For example, IM02 responded to the main issues, impediments, or risks associated with delegating data subject rights in research studies by commenting: *"whether or not the subject can trust what will be done with the data? I think that would be the biggest concern"* (IM02). IR03 emphasised the importance of establishing trust with citizens participating in this kind of research *"my experience has been that citizens actually, probably once they choose to use your service or help you with research, they trust you, mostly, so they would probably be fine to let you handle really the communication"* (IR03).

By using our idea, citizens place their trust in researchers to act on their behalf, whether through delegation, the use of their donated data, or the analysis of the results. IM01 expressed satisfaction with the design of our work, stating, *"Who do you talk to? How do you ask to get access to your data? I didn't even know anything, until today, about that you could actually request that kind of data ... it would really be useful to have a delegate"* (IM01). But the consequences of researchers breaching this trust could be significant. IR03 remarked: *"I think the main risk potentially is to a kind of a breach of trust. So data subjects delegate something to the researcher and they have a certain image of what you're going to do as a researcher. And then if you do something different or more than they expected, that could cause distrust or and harm. It's a bit sensitive because not only might that cause distrust in that research or that researcher, but that might actually then create distrust in the system of research or the whole position of people towards researchers"* (IR03). IM02 suggested that improving transparency could help enhance the trust relationship with researchers, stating, *"that there should be a track record of demonstrating ways of handling people's data"* (IM02).

Transparency was another prominent topic raised by the interviewees, and could enhance trust. When asked how we can improve trust in data controllers, most interviewees cited issues related to transparency. For example, when asked this question, ID03 advocates for better transparency stating *"Better transparency. I think I find working in the profession that some people forget that at the end of these requests is a person and actually the whole issue of data rights was actually meant to improve transparency between the data subject and the controller, and I think some organisations almost start from the premise of how can we restrict this access rather than how can we provide it"* (ID03). Additionally, interviewees indicated the need for clear and open communication about the research process, data required, tasks involved, processing requests, and accountability. For example, IM02 believe that: *"If there's a way of showing people's track records for handling data. I think that it would incentivise more people to join"* (IM02). Overall, these statements

suggest that transparency could build confidence in data controllers and ensure that participants are well informed, reducing concerns about misuse or mishandling of data or delegated responsibilities.

The wireframe prototype we showed interviewees had a feature for people to rate their experiences with data controllers. By rating peoples' experiences, we wanted to explore ways to foster trust and transparency in data subject rights research projects. Most interviewees responded positively to the idea, for example, IM02 noted, *"Getting testimonies from previous people ... that's very useful because someone could be like, what did Laura or what did Greg say about this process?"* (IM02). Interviewees suggested various design ideas for people to rate their experience of data controllers, with most advocating the use of metrics. For example, when discussing design ideas to improve the ratings, ID03 mentioned metrics like: *"What the legibility of that would be, and whether I thought it was comprehensive"* (ID03). Additionally, there was a suggestion to collect quantitative data for each metric, along with qualitative feedback that captures emotional responses. *"In our experience, when we did that [data subject rights driven studies], people had like quite a lot of rich emotional experience ... You could have this one to five, but maybe. You should also ask maybe do you want to explain it? Like maybe there should be a box where they can explain a little bit why they gave up ink and then maybe later on you could do some kind of coding analysis on that"* (IR02). ID02, however, cautioned against evaluating data controllers beyond their obligations to the data protection regulations. They suggested that rating data controllers should be based solely on whether they have met their legal obligations to avoid unfair judgments. *"I can't think that you could rate them on anything else other than have they met their obligations under the legislation ... otherwise you could be asking people to form a judgment about a controller which was unfair"* (ID02). We can see there is an interesting mix of opinions from different stakeholders regarding how ratings should be presented, what they should be based on regarding subjective experience or adhering to objective accountable standards. Ratings, as agreed by the interviewees, are a perfect way to show the experience of others and this would enhance transparency and by extension trust.

To sum up, trust emerged as a key topic, with participants needing to rely on researchers to handle sensitive data responsibly. Transparency in the research process and data handling was considered crucial to building confidence and encouraging participation. Many interviewees endorsed the idea of a rating system for data controllers to improve transparency and by extension trust, suggesting both quantitative and qualitative evaluation structures.

4.2 Burden and workload

This theme discusses issues of burden and workload raised by interviewees for the various stakeholders.

Interviewees identified that the proposed prototype demonstrating aspects of the framework presents a steep learning curve and a heavy workload for some stakeholders. When discussing training videos for participants taking part in the hypothetical data rights research project, ID01 referenced their family relations' potential reaction: *"they would look at this and think, ... Don't have the time. I'm not going to. I can't be bothered to watch the videos."* (ID01). The videos are intended to guide participants through key study elements, such as sanitising data for donation—removing all identifiable information and only sharing what is necessary. It was raised that this process may be too complex for non-experts, who are the likely participants. In response to the data donation steps (data sanitation) in the prototype, ID03 commented, *"My goodness, that's quite difficult"* (ID03). The added complexity for data donation could pose challenges for individuals participating in such studies, as noted by IR03: *"I am in principle not interested in how the sanitisation works. I can imagine that if that part is difficult, it might stop people in the process of doing the work"* (IR03). IM03 emphasised that for the idea to be effective in a participatory research context, this procedure *"has to be simplified"* (IM03). This underscores the challenges of engaging people specifically in data rights research projects. Participants might inadvertently upload identifiable information, which would undermine the goal of protecting their privacy.

One interviewee stressed the need for a delegate to simplify complex processes and communication, making the process more efficient for non-experts. IM01 said, *"Because of the cumbersome nature of communicating with so many people and the time it's gonna take for them to get that data and you know how difficult some data controllers might be; it would really be useful to have a delegate who can automate or who can make that process easier and more streamlined"* (IM01). This quotation highlights how a delegate can ease the burden on participants participating in such studies.

Interviewees highlighted the challenge of overburdening data controllers' human resources. All three DPOs unanimously identified the main challenges of processing data subject requests as being complex and the significant human effort required. The data involved is often intricate and demands careful analysis. As ID01 explained, *"what is complicated is, the volume is large and trying to separate out what a person is and is not entitled to is complicated"* (ID01). To assist researchers conducting studies driven by data subject rights, ID02 offered some advice: *"You might ask individuals or to make sure that the individuals are only applying their right [data subject rights] to different controllers, say if you've got 50 people in your study, then they're using 50 different controllers. Because otherwise, if you've got an organisation who has one person doing subject access requests... That's gonna be quite a strain on that individual from a human perspective to have 50 requests [data subject requests] that are all due on the same day or all around the same day"* (ID02).

Another concern raised about delegation is the increased verification burden it may place on data controllers. Some DPOs emphasised the extra effort required to verify the authenticity of these requests. As ID02 explained that researchers, *"Doing it [making a request on a citizens behalf] for them [citizens] I think adds unnecessary complexity to this. Particularly, adds cost to the [data controller]"* (ID02). Nevertheless, they would accept delegation requests from registered law firms, as this would simplify the verification of the legitimacy of such requests.

Researchers may need to make follow-up requests beyond the data controllers. Handling some of these requests might require the involvement of the DPAs. Some DPOs have expressed concerns that researchers may struggle with this process. For instance, ID01 noted: *"we would much rather... the organisation went to the ICO [Information Commissioner's Office], and the ICO wrote to us and said this person definitely has the right to write [make a request] on this person's behalf and then we will engage with you. But the researcher will never do it"* (ID01). The pressure on researchers managing participants may lead them to abandon follow-up communications with the DPAs. This situation could send misleading signals to policymakers and hinder other research projects as a result.

To summarise, interviewees noted that a steep learning curve and heavy workloads are potential barriers to adopting our framework. An interviewee emphasised the importance of having a delegate to help ease the burden on non-experts. The interviewees also pointed out the challenges of handling data subject requests, which are often complex and demand substantial human effort. Additionally, some DPOs expressed concerns about the increased verification burden associated with delegation requests. Researchers may struggle with follow-up requests, particularly involving DPAs, potentially leading to abandoned communications and complications in future research projects.

4.3 Data protection

In this theme, we highlight some concerns related to data protection principles. While the focus is primarily on the GDPR, we believe that the issues we highlight are also relevant to other similar legislation.

Interviewees expressed concerns about collecting additional data that might be required for citizens to delegate exercising the data subject rights to researchers, such as photographic identity for verification and the ethical use of participant's data. IR01 stated that *"my privacy concerns are that I may have to provide identifying information to the researchers"* (IR01). In today's data privacy-conscious environment, this quotation suggests that people may be very cautious about sharing their personal information. Similarly, any potential risk to data security and ethical use of

data can cause problems to citizens from participating in these types of studies. ID03 states: “Well, the fact that you’re trying to get anonymised material from the participant rather than personal data, I’d tell them to send it direct [to the data controller]. Because you don’t really want to store that. There’s no benefit to you [the researcher] having that information. It just causes you [the researcher] a problem, I think” (ID03). IR01 and ID02 argue that researchers are not good at handling participants’ data. IR01 states: “We talk about a lot about identity fraud. We talk a lot about data. The data breaches ... that is the honest researchers are not always the best people protecting your data, many of them maybe ... have no idea how to encrypt data securely, how to manage authorisation to this data” (IR01). Additionally, they argue that having more participants’ data could lead to identifying them. In IR01’s words: “because if as a researcher you can identify your participants that is bad, then you become a very powerful data controller” (IR01).

To address the concerns raised above, many interviewees emphasised the importance of upholding data minimisation principles when authenticating requests made by data controllers. Several interviewees proposed implementing a two-factor authentication system to authorise these requests. IM02 commented “I feel like we may have moved past the driver’s licence or, like giving a tangible piece of identification because now we’re in an age where everyone’s hanging around with a smartphone or a laptop” (IM02). Interviewees suggested using one-time password (OTP) systems to verify requests, while others recommended utilising other available digital methods.

Delegating data subject rights in research studies raises concerns about legal uncertainty, particularly since the GDPR does not explicitly address it. IR01 noted that delegation might help address some of the challenges they faced during their research, such as participants struggling to understand complex legal terms; however, they are unsure about its legality. IR01 stated, “I don’t know whether the delegation was actually allowed under GDPR” (IR01). This situation left the interviewee [a researcher] feeling uncertain, and they remained undecided about how to proceed with the idea. Similarly, ID02 opposed delegation for various reasons, among which, were concerns about the legal ambiguity associated with it, commenting, “we’re responding to them without having to go through any international data transfer agreements because the requests from an individual. And it’s purely for their personal and domestic purposes. So we don’t have to worry about the international data transfer of their personal data to them. But if we are passing it to an intermediary, we might not have a lawful basis to pass to them, particularly if they are overseas” (ID02).

Other concerns raised about delegation included the confidentiality and the security of data subjects. Some interviewees emphasised that maintaining confidentiality and security is crucial based on their experiences with data subject requests. Both ID01 and ID02 pointed out that individuals typically exercise their rights only when issues arise. ID01 stated, “the subject access request is a sign that you are now usually in a combat relationship with the data subject. Something has gone wrong” (ID01). This perspective may explain their cautious approach when handling these requests, as any potential data leakage could further escalate the already strained relationship. A researcher, IR03, however, expressed disagreement with some of the views regarding delegation, insisting that “In most case law that I’ve seen, ... controllers try to argue that delegation cannot be used. Because it’s a privacy risk, for example, and I feel that mostly it’s just a way for them to delay, to use a tactic, to not respond. Rather than a genuine concern over privacy” (IR03).

All three interviewed researchers agreed that there is a lack of standardisation in how data controllers respond to data subject requests and the process is disorganised. IR02 noted, “The main challenge is this lack of standardisation and how organisations respond. So the process was like very manual, very messy” (IR02). IR03 argued that increased numbers of studies would be crucial to defining and streamlining the process: “we get collectively better at it ... we know what are the problems, we know how to solve the problems” (IR03).

In summary, interviewees expressed concerns about data protection, particularly regarding the collection of sensitive data for verification and the ethical use of personal information. To address these issues, they suggested implementing

two-factor authentication systems to enhance security. Another concern was the legal uncertainty surrounding the delegation of data subject rights under the GDPR, with some participants unsure about its legality. Confidentiality and data security were also key issues, with some opposing delegation due to potential privacy risks. Researchers highlighted a lack of standardisation in the process and emphasised the need for clearer guidelines.

5 DISCUSSION

Our findings suggest that delegated data subject rights are best understood not merely as a legal authorisation mechanism or a technical workflow, but as a socio-technical practice in which participants, researchers, data controllers, and legal infrastructures continuously negotiate trust, accountability, identity verification, organisational capacity, and legal responsibility. This perspective helps explain why delegation cannot be addressed solely through legal guidance or technological solutions. Instead, successful delegation depends on coordinating the needs, expectations, and responsibilities of multiple actors operating within a shared socio-technical system.

Prior work has demonstrated the promise of delegation as a mechanism for scaling the exercise of data subject rights. For example, Asghari et al. [5] proposed delegation as a means of lowering barriers to participation, while the Austrian digital rights organisation *None of Your Business* (noyb) successfully employed delegated requests to collect data for a large-scale investigation of the CRIF credit-scoring algorithm [30]. These studies suggest that delegation can substantially increase participation and enable the collection of datasets that would be difficult to obtain through individual requests alone.

Our findings, however, reveal a more nuanced picture. While delegation offers clear benefits for scaling research, some DPOs, responsible for processing data subject requests, expressed reservations about its implementation. Their concerns centred on verifying the authenticity of delegated requests, establishing the legitimacy of representatives, and preventing potential misuse of the process. These concerns are consistent with previous research demonstrating that malicious actors can exploit weaknesses in data subject rights procedures to obtain personal data without proper authorisation [12, 29]. Rather than undermining the delegation model itself, these findings highlight the need for robust and proportionate mechanisms for verifying delegated requests while preserving the accessibility of data subject rights. Future research should investigate practical approaches to balancing security, usability, and legal compliance in delegated rights exercises.

Our interviews highlight divergent perspectives between researchers and DPOs regarding data subject requests. Some DPOs interpret such requests as signs of underlying problems, sometimes resulting in what one DPO interviewee described as a “combat relationship” with data subjects (ID01; see Section 4.3). DPOs may assess the motives behind requests, suspecting that they stem from potential disputes or conflicts. In contrast, some researchers, such as IR03 (see Section 4.3), suggest that DPOs invoke data security concerns strategically to reject or delay requests. This misalignment in perspectives can pose serious challenges for data subject rights driven studies. When DPOs are perceived as gatekeepers or adversaries rather than facilitators, both researchers and potential participants may be discouraged from engaging in such studies. This erosion of trust can lead to reluctance in fulfilling legal obligations and processing requests. A perceived lack of institutional support or overly rigid enforcement may, in turn, reduce participation, compromise data quality, and heighten legal and ethical risks.

Another important finding from our interviews was that not all stakeholder groups recognised that researchers themselves are increasingly becoming powerful data controllers, given the volume and sensitivity of the personal data they collect, process, and store. As data-driven research expands, researchers must acknowledge that they are

subject to many of the same data protection obligations and trust expectations traditionally associated with commercial organisations.

This issue becomes particularly salient in the context of delegated data subject requests. To enable researchers to identify the relevant data controller and submit requests on a participant's behalf, participants may need to disclose additional personal information. However, requiring more information than is strictly necessary risks conflicting with the principle of data minimisation under the GDPR. The challenge is further complicated by the fact that some individuals interact with online services using pseudonyms or alternative identities, making traditional identity verification both difficult and potentially intrusive.

To address these challenges, most interviewees advocated the use of privacy-preserving digital credentials or tokens that would enable researchers and data controllers to verify delegated requests without requiring participants to disclose unnecessary personal information. Although such mechanisms are not yet widely available in practice, developments in digital identity technologies suggest that they could become a viable solution in the near future. Until then, researchers and data controllers should design delegation procedures in accordance with existing regulatory guidance, such as that provided by the European Data Protection Board (EDPB) on the right of access and identity verification, ensuring that verification measures remain proportionate while respecting the principle of data minimisation [14].

More broadly, our findings reinforce that delegation and data donation fundamentally depend on trust between participants and researchers. Despite guidance encouraging individuals to minimise the personal information they share, participants may still donate datasets containing directly or indirectly identifiable information. Researchers therefore have a responsibility to honour this trust by implementing robust technical and organisational safeguards. These safeguards should include removing or anonymising information that could reveal an individual's identity or behavioural patterns, limiting data retention, and ensuring that personal data are processed only to the extent necessary for the stated research purpose. Such measures are essential for protecting participants' privacy while preserving their autonomy and confidence in rights-based research.

As mentioned above, our interviewees raised question about the design of technological solutions to verify delegation requests in ways that are secure, privacy-preserving, and user-friendly. As reliance on physical forms of identification, such as driver's licenses and other tangible credentials, becomes increasingly outdated, alternative approaches must be developed. One interviewee questioned how we can validate a delegate's identity and intent without resorting to outdated or exclusionary verification methods. These reflections emphasise the need for innovative technical, legal, and social solutions to support the responsible use of delegation in digital contexts.

Another critical issue in delegation is that it is not explicitly mentioned in some regulations, resulting in differences in both interpretation and implementation [16]. While data protection authorities have begun to offer guidance, there remains ambiguity and inconsistency in how delegation is recognised in practice. Notably, two DPOs, both UK-based, offered opinions that conflict with the guidelines set forth by the ICO [24]. The lack of clarity in this area presents both challenges and opportunities for the HCI community. HCI researchers have a unique set of methods and perspectives that can significantly contribute to legal and policy debates [25], particularly where digital systems intersect with social and ethical issues, such as the delegation of data subject rights.

5.1 Design implications for delegated data subject rights-driven studies platforms

Our work identified several design principles to guide the development of data subject rights-driven participatory research platforms. These guidelines are grounded in stakeholder insights, particularly from members of the public,

researchers, and DPOs. Together, they provide actionable recommendations for designing systems that are transparent, trustworthy, and operationally feasible.

5.1.1 Building and sustaining trust: Trust emerged as a central theme across all stakeholder groups. To address this, platforms should establish a trust anchor from the initial interaction. Displaying clear institutional information, researcher credentials, ethics approval identifiers, and contact details can help intending research participants understand who is responsible for handling their data. Providing a live transparency log that shows the number of requests sent, response times, and outcomes may further enhance accountability and credibility.

Closely related to this, platforms should pursue radical transparency throughout the process. Each data subject request should present key information such as the target data controller, the relevant legal basis, the content of the request, and the expected timeline. Allowing participants to preview and approve each request reinforces agency and confidence. Transparency should also extend to request status, retention clocks, and all communications between delegates and data controllers, ensuring participants remain informed and in control.

5.1.2 Ensuring privacy and data minimisation: Given concerns regarding identity verification and the collection of unnecessary personal information, platforms must prioritise data minimisation in accordance with GDPR [43, Art. 5(1)(c)]. Identity verification should avoid image uploads or official documents where possible, relying instead on privacy-preserving mechanisms such as one-time passwords or consent tokens that confirm authorisation without disclosing additional data.

In parallel, platforms should offer dual participation tracks—one for participants comfortable managing their own requests and another for those preferring to delegate. Both tracks should maintain the same level of transparency and permit switching mid-process. This flexibility accommodates different comfort levels and ensures inclusivity.

To reduce cognitive burden, just-in-time micro-tutorials can replace traditional training videos. Contextual and concise explanations, such as short tooltips or one-minute animations, can help participants grasp key legal or technical terms without interrupting their workflow.

When studies involve optional data donation, systems must make donation simple, safe, guided, and skippable. Participants should be able to opt out without penalty. Those who choose to donate should be supported through structured data sanitisation workflows that detect and remove personally identifiable information. Where appropriate, derived summaries may be accepted instead of raw data to preserve privacy while maintaining research utility.

5.1.3 Managing burden and organisational constraints: To minimise the burden on data controllers, delegation platforms should be designed to account for organisational capacity. Rather than allowing large numbers of requests to be submitted simultaneously, platforms could employ intelligent scheduling mechanisms that throttle submissions, distribute requests over time, and avoid overwhelming individual organisations. Such mechanisms would help data controllers manage workloads more effectively while supporting compliance with statutory response deadlines.

Platforms should also facilitate legal compliance by providing standardised yet jurisdiction-aware request templates. A modular template library, with each component mapped to the relevant legal basis (e.g., GDPR [43, Art. 15]), would promote consistency across requests while allowing templates to adapt to variations in national legislation, procedural requirements, and statutory response periods. This would reduce the burden on both researchers preparing requests and data controllers responsible for processing them.

Delegation platforms should explicitly account for the limited retention periods associated with certain categories of personal data, particularly CCTV footage. Because such data may be deleted within days or weeks, platforms should

incorporate retention-aware workflows that include automated countdown timers, proactive reminders, and clear visual indicators of retention deadlines. Supporting participants in submitting requests before data are erased would reduce avoidable data loss and improve the likelihood of successful rights exercises.

5.1.4 Accountability and feedback mechanisms: Stakeholders supported mechanisms to assess the performance of data controllers but cautioned against subjective or punitive scoring. Platforms should therefore implement compliance-focused rating systems that evaluate objective factors such as timely acknowledgment, clear communication, and secure data delivery. This approach balances transparency with fairness toward data controllers.

In cases of nonresponse, platforms should enable gentle escalation pathways that allow participants/researchers to report unresolved cases to DPAs or equivalent supervisory bodies. A structured escalation pack—including correspondence history, timestamps, and relevant legal bases—can streamline the escalation process while maintaining professionalism and minimising friction.

5.1.5 Researcher responsibilities and delegation mechanics: Our findings reaffirm that researchers can become powerful data controllers in their own right. Therefore, systems should treat researchers as data controllers or processors by maintaining detailed records of processing activities, purpose limitation statements, and access logs, as mandated by GDPR [43, Art. 30]. Regular audits and data protection impact assessments should verify ongoing compliance and prevent unauthorised data reuse.

To strengthen accountability in delegated interactions, platforms should implement verifiable and revocable delegation. Time-limited consent tokens scoped to specific rights and data controllers can enable participants to authorise and revoke delegation easily. A visible “kill switch” or revoke button ensures the participant’s continued control.

Similarly, data controller-initiated identity verification can transfer verification responsibilities away from researchers and minimise additional data processing. Whenever possible, identity verification should occur directly between the data controller and the data subject, with the platform recording only a confirmation that verification was successful.

5.1.6 Fostering participation and inclusivity: Recognising the varying levels of participant engagement, platforms should support layered participation ranging from passive observation to active delegation and data donation. Providing milestone indicators, badges, or simple progress trackers can help sustain motivation and acknowledge contributions without gamifying sensitive rights-based activities.

For communication, bilateral and auditable messaging is essential. A secure in-platform mailbox should consolidate exchanges between participants, delegates, and data controllers. This structure maintains transparency, reduces the risk of miscommunication, and produces an exportable audit trail that can support oversight or regulatory review.

5.1.7 Supporting legal diversity and continuous Learning: Given the diversity of data protection regimes, platforms must adapt to regional legal frameworks. A jurisdiction selector at onboarding could automatically tailor templates, timelines, and available rights to local legislation while clarifying where certain rights may not apply. This contextualisation reduces confusion and ensures compliance across borders.

Finally, platforms should instrument and publish aggregate performance metrics. A public-facing dashboard summarising success rates, response times, rejection reasons, and escalation outcomes would enhance transparency and foster shared learning among researchers, regulators, and participants. These aggregated insights could inform future improvements in the design and governance of data subject rights research.

In summary, these design implications address the socio-technical challenges of scaling data subject rights-driven studies. They emphasise building trust through transparency, minimising data exposure, respecting organisational

capacity, and embedding accountability into both technical and procedural layers. By operationalising these principles, future platforms can empower citizens to exercise their data subject rights meaningfully while supporting ethical, participatory, and reproducible data research.

6 LIMITATIONS AND FUTURE WORK

This study has some limitations that present opportunities for future research. First, our work focused on a relatively low-risk scenario involving consumer data held by high-street retailers. Although appropriate for exploring the feasibility of delegation, exercising rights over more sensitive categories of personal data—such as health, financial, or biometric information—may introduce additional legal, ethical, and organisational challenges. Future work should investigate how delegation can be adapted to these higher-risk contexts and evaluate the safeguards required to support them.

Second, while fictional data were used in the prototype, prior work shows that using real data yields richer insights [20]. To mitigate this, we presented participants with an anonymised sample of real data (see Section 3.5), though this only partially reflects real-world conditions.

Third, our findings are grounded in the UK GDPR and the practices of UK-based organisations. While many of the design principles identified in this work are likely to be applicable to jurisdictions with comparable privacy legislation, such as the EU GDPR, the CCPA, or the Canadian PIPEDA, differences in legal interpretation, regulatory guidance, and organisational practices may influence their implementation. Comparative studies across jurisdictions would help establish the generalisability of our findings.

Finally, the prototype represents only one possible implementation of a delegation platform. Alternative designs, interaction techniques, and technical architectures may offer different trade-offs in usability, privacy, transparency, and scalability. Future research could explore these alternatives, including the integration of emerging technologies such as privacy-preserving digital credentials, to better understand how delegation platforms can support secure, trustworthy, and scalable exercises of data subject rights.

7 CONCLUSION

Data subject rights have become an increasingly valuable mechanism for promoting transparency, accountability, and participant-centred research. Yet, their use as a research methodology remains constrained by the complexity of exercising these rights, limited scalability, and the lack of infrastructures that support broad public participation. Moreover, existing studies have primarily examined data subject rights from the perspectives of data subjects or researchers, often evaluating organisational compliance through the outcomes of rights requests rather than considering the wider socio-technical ecosystem in which these rights are exercised [21]. In this paper, we addressed this gap through a stakeholder study involving the three key actors in delegated data subject rights research: data subjects, researchers, and DPOs.

Our findings show that delegation has significant potential to broaden participation in data subject rights-driven research and enable more scalable, participatory forms of data collection. At the same time, they reveal that successfully implementing delegation requires careful consideration of trust, transparency, privacy-preserving verification, proportional identity verification, organisational capacity, and regulatory uncertainty. By synthesising these stakeholder perspectives, we derived a set of design implications for delegation platforms that balance the needs of participants, researchers, and data controllers while supporting legally compliant and trustworthy rights exercises.

More broadly, this work contributes to CSCW and HCI scholarship by demonstrating that scaling rights-based research is not solely a technical challenge, but a socio-technical one requiring the alignment of platform design,

organisational practices, legal frameworks, and stakeholder expectations. We argue that delegation provides a promising foundation for transforming data subject rights from an individual legal mechanism into a scalable infrastructure for participatory research, while fostering greater transparency, accountability, and collective governance of personal data.

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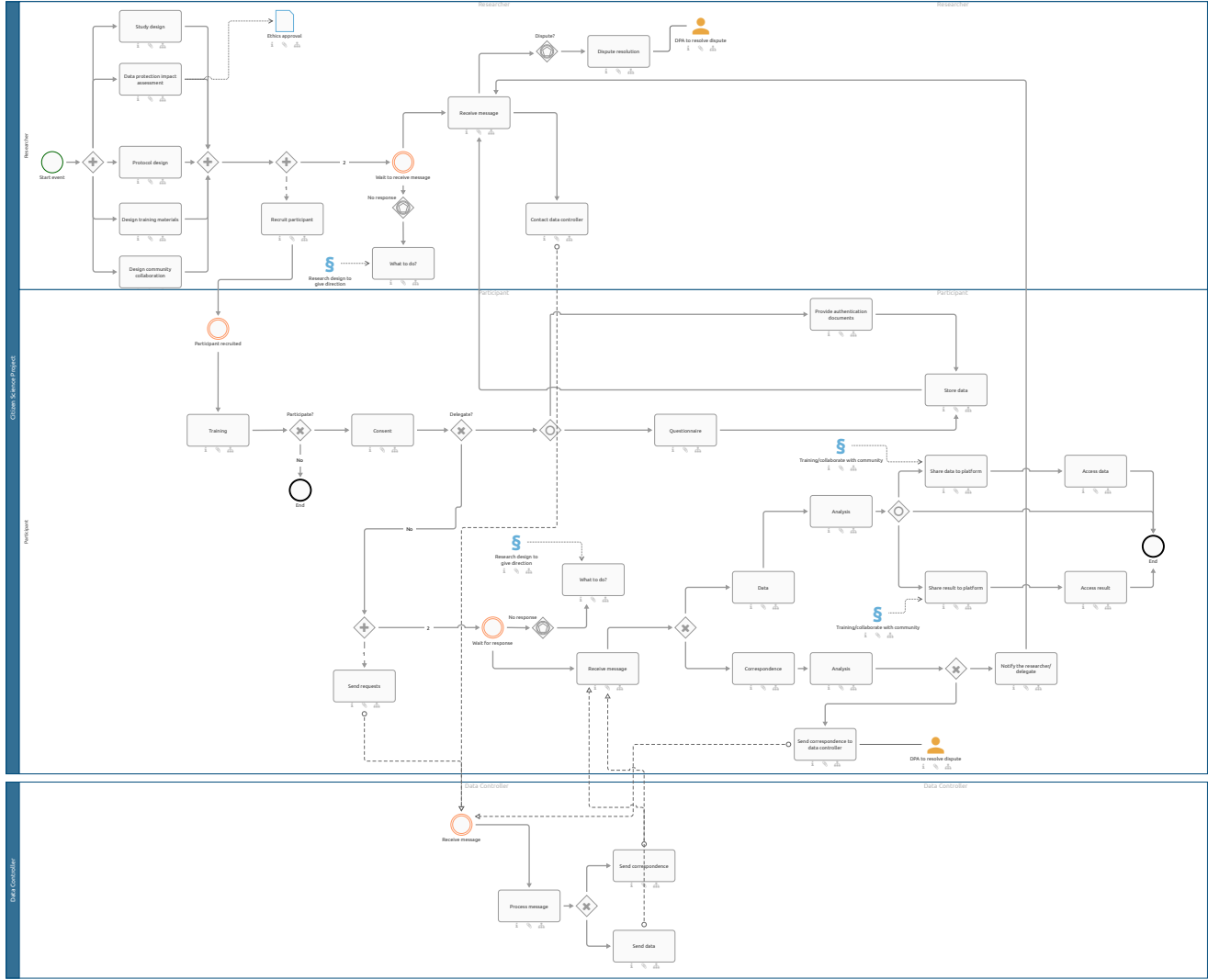
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A FRAMEWORK WORKFLOW DIAGRAM (SEE SECTION 3.3)

In 3.3, we presented a prototype of the delegated data-subject rights driven studies. Below, we provide a workflow diagram illustrating the possible interactions within the studies we designed as part of the prototype.



B INTERVIEW QUESTIONS - PROTOTYPE DEVELOPMENT (SEE SECTION 3.3)

- (1) You published a work about using data subject rights as a methodology for data collection; can you tell us more about the research work?
- (2) From your practical experience, could you run us through the step-by-step process of using data subject rights in academic studies?
- (3) Can you explain the concerns and challenges you encountered while researching data subject rights?
- (4) In your opinion, what could be done to address these concerns and challenges you experienced?
- (5) From your perspective, what could you say about the data controller's behavior concerning dealing with data subject rights requests?
- (6) How, if at all, do you think data controllers could improve the process of dealing with data subject requests?
- (7) What role do you think policymakers could play in researching data subject rights?
- (8) How would you like to see the process of using data subject rights in academic studies develop going forward?

C STAKEHOLDERS INTERVIEW STUDY MATERIALS

In 3.5, we exercised our right of access by requesting shopping data from a UK-based data controller. We then modified the returned data and used it as a prop during interviews to help participants analyse and evaluate potential risks. We also provided participants with a request template to illustrate how they could submit their own requests if they felt comfortable doing so. In addition, we created a sample response letter from a data controller and shared it with interviewees to support discussion. Below, we include both letters; the request template closely follows the format we used when exercising our own right of access.

C.1 Right of access/template request email (see Section 3.5)

Dear Sir or Madam,

Please supply me with confirmation of the data processing activities involving my data, a copy of personal data you hold about me, and the information outlined in section 11.2 of your privacy policy that I am entitled to under Article 15 'Right of access' of the General Data Protection Regulation (GDPR) 2016/679 or the UK GDPR.

My personal details related to your organisation are:

Name: xxx xxx xxx

Email address: XXX@xxxxx.xxx

Additional information: I have a [redacted account] account with the same info.

Should any more information from me be required, please let me know as soon as possible.

It may be helpful for you to know that a request for information under the UK GDPR should be responded to within one month of receipt.

If you do not normally deal with these requests, please pass this email to your Data Protection Officer. If you need advice on dealing with this request, the Information Commissioner's Office can assist you and can be contacted on 0303 123 1113 or at ico.org.uk.

Yours faithfully,

First author

C.2 Sample correspondence from data controllers (see Section 3.5)

Good Afternoon,

Please provide us with a copy of your identification document for verification. For all information on how we process data, please refer to our customer privacy policy below.

Customer Privacy Notice

Kind regards,

Data Protection Team

C.3 Interview questions (see Section 3.5)

- (1) How would you rate data controllers?
- (2) Why is that important to you?
- (3) From your perspective, do you believe this idea of delegation will motivate citizens to participate in studies driven by data subject rights?
- (4) What type of documentation should data controllers ask for authentication purposes?
- (5) Would you prefer to delegate to only trusted data controllers?
- (6) What do you see as the main issues, impediments, or risks that arise from the idea of delegating data subject rights in research studies?
- (7) How do you feel about the privacy concerns in this idea of delegation?
- (8) How could we improve trust in data controllers?
- (9) What issues need to be addressed to make the idea of delegation work in participatory research?
- (10) Is there anything that is missed or needs clarification? Which one and why?